

C.C.R.B CASE CLOSING FORM

Investigator assigned: M. Taylor		Team: 8	CCRB#: 9800732	☐ Force ☐ Discourtesy ☒ Abuse ☐ O.L. ☐ Injury
Date of incident: 2/13/98	Time of incident: 10:15 AM	Location of incident: 125th Street and 12th Avenue, Manhattan	Pct. of occurrence: 26	Date S.O.L. Expires: 8/13/99
Date reported: 2/13/98	Time reported: 4:44 PM	To whom/where/how reported: Ms. § 87(2)(b) filed a complaint in person at the 26th Precinct.		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s): same as above		Home address: same as above		
Witness(es): § 87(2)(b) § 87(2)(b)		Home address: § 87(2)(b) § 87(2)(b)		
Subject officer(s) (include rank): PO Ronald Luparello PO Christopher Mormino		Shield: 27134 5073	Tax: 916088 916280	Command: 30 Queens Court
Witness officer(s) (include rank): PO Richard Angeletti		Shield: 8765	Tax: 900157	Command: Highway Unit #1
Allegation(s) by letter: A) Abuse of Authority. Officer Luparello abused his authority when he unclipped his holster in violation of Patrol Guide procedure 104-01. B) Abuse of Authority. Officer Mormino abused his authority when he unclipped his holster in violation of Patrol Guide procedure 104-01. C) Abuse of Authority. Unidentified officer abused his authority when he withdrew his weapon halfway from his holster in violation of Patrol Guide procedure 104-01.				Recommendation(s): Exonerated. Exonerated. Member of service unidentified.

Summary

On February 13, 1998, at approximately 10:15 AM, Ms. § 87(2)(b) was driving her two sons, § 87(2)(b) and § 87(2)(b) northbound on the Henry Hudson Parkway. Maneuvering to avoid a car

ENCL. 1A

parked halfway in her lane (the right lane of the highway) and halfway in the emergency lane, Ms. § 87(2)(b) changed lanes without signaling. Consequently, Officer Angeletti moved his vehicle directly behind hers and turned on his lights and sirens. He then followed Ms. § 87(2)(b) off the highway to the intersection of 125th Street and 12th Avenue where he pulled her over behind a police van.

While Officer Angeletti approached her vehicle, Ms. § 87(2)(b) became extremely nervous and proceeded to exit her car with her arms in the air. Subsequently, Officer Angeletti stated, "Ma'am, get back in the car," and Officers Luparello and Mormino exited their van. A moment later, Ms. § 87(2)(b) reached back into her car with one hand in an attempt to get her vehicle information. She saw either Officer Luparello or Officer Mormino unclip his holster without drawing his gun (**Allegations A and B**). Meanwhile, Mr. § 87(2)(b) and Mr. § 87(2)(b) recall one of these officers drawing his weapon halfway and then returning it to its original position (**Allegation C**).

Ultimately, Ms. § 87(2)(b) became calm, and Officer Angeletti issued her a summons. Ms. § 87(2)(b) and her sons then drove to the 26th Precinct to file a complaint.

Analysis

Whereas Ms. § 87(2)(b) alleges that one of the officers unclipped his holster, Mr. § 87(2)(b) and Mr. § 87(2)(b) allege that one of the officers abused his authority by drawing his sidearm halfway before returning it to its original position. In either case, these acts § 87(2)(g) should be exonerated.

Officers Luparello and Mormino admit to unclipping their holsters before approaching Ms. § 87(2)(b) vehicle (**Allegations A and B**). In his interview, Officer Luparello explained that, per his routine during a car stop, he unclipped his holster after he left the van and began to approach Ms. § 87(2)(b) car (see Officer Interview, PO Luparello; encl. 8E). Meanwhile, Officer Mormino stated that he unclipped his holster immediately before exiting the police van (see Officer Interview, PO Mormino; encl. 9E). § 87(2)(g)

Even before they exited the van, Officers Mormino and Luparello observed Ms. § 87(2)(b) shouting at Officer Angeletti and abruptly getting out of her car (see Officer Interview, PO Luparello; encl. 8E; Officer Interview, PO Mormino; encl. 9E; Officer Interview, PO Angeletti; encl. 7E; and Civilian Interview, § 87(2)(b) encl. 4B). § 87(2)(g) allegations A and B should be exonerated.

§ 87(2)(g)
Consequently, this act should be exonerated; § 87(2)(g)
allegation C should be considered "member of service unidentified."

Investigator:

[Signature]

Date:

5/26/98

Supervisor:

R3 Unkompi

Date:

5.26.98

Reviewed by:

Date:

Reviewed by:

Date: